

Whangarei District Council Meeting Minutes

Date: Thursday, 26 September, 2024

Time: 9:00 a.m.

Location: Civic Centre, Te Iwitahi, 9 Rust Avenue

In Attendance

His Worship the Mayor Vince Cocurullo
Cr Gavin Benney (Teams)
Cr Nicholas Connop (Teams)
Cr Ken Couper
Cr Jayne Golightly (Teams)
Cr Phil Halse
Cr Deborah Harding
Cr Patrick Holmes
Cr Scott McKenzie
Cr Carol Peters
Cr Simon Reid
Cr Phoenix Ruka
Cr Paul Yovich

Not in Attendance

Cr Marie Olsen

Scribe

C Brindle (Senior Democracy Adviser)

Administrative Matters

- Meeting livestreamed
- Members attending electronically
- Item 5 - Police Report withdrawn
- Supplementary Report – Confidential Minutes Whangarei District Council 29 August 2024

1. Karakia/Prayer

His Worship the Mayor opened the meeting with a karakia/prayer.

2. Declarations of Interest / Take Whaipānga

No declarations of interest were made in the open section of the meeting.

3. Apology / Kore Tae Mai

Cr Marie Olsen

Moved By His Worship the Mayor

Seconded By Cr Simon Reid

That the apology be sustained.

Carried

4. Public Forum / Huihuinga-a-tangata

Samantha and Jonathan Jones - RMA and WDC E Plan

5. Police Report

Item 5 was withdrawn from the agenda.

6. Confirmation of Minutes of Previous Meetings of the Whangarei District Council / Whakatau Meneti

6.1 Minutes Whangarei District Council Meeting held 29 August 2024

Moved By Cr Carol Peters

Seconded By Cr Scott McKenzie

That the minutes of the Whangarei District Council meeting held on Thursday 29 August 2024, including the confidential section, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

6.2 Minutes Whangarei District Council Meeting held 28 August 2024

Moved By Cr Carol Peters

Seconded By Cr Simon Reid

That the minutes of the Whangarei District Council meeting held on Wednesday 28 August 2024, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

7. Decision Reports / Whakatau Rīpoata

7.1 Temporary Road Closure - Blessing and Opening of a Whare

Moved By Cr Deborah Harding

Seconded By Cr Carol Peters

That the Council:

1. Approves the temporary closure of the following roads to ordinary traffic for the Blessing and Opening of a Whare event on the following date in accordance with section 342 (1)(b) and Schedule 10 Clause 11 of the Local Government Act 1974.

Friday 25th October 2024

Cameron Street, from corner of John Street and Cameron Street to James Street.

James Street, from Cameron Street to Robert Street.

Period of Closure: 4am to 10am.

2. Approves the temporary closure of the side roads off the roads to be closed for up to 100 metres from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notice of these proposed temporary closures, to consider any objections and to either approve, cancel or amend any or all the temporary road closures if applicable.

Carried

Cr Yovich requested his vote against be recorded.

Cr Reid requested his abstention from voting be recorded.

Cr Couper left the meeting at 9.25am during Item 7.1.

7.2 Temporary Road Closure Request - Whangarei Christmas Parade 2024

Moved By Cr Carol Peters

Seconded By Cr Simon Reid

That the Council:

1. Approves the proposal to temporarily close the following roads to ordinary traffic for the Whangarei Christmas Parade 2024 on the following date in accordance with the Transport (Vehicular Traffic Road Closure) Regulations 1965, subject to event organisers providing proof of public liability insurance to the Chair of the Infrastructure Committee and GM Infrastructure by no later than 30 October 2024.

Saturday 30 November 2024

Alexander Street, from University Campus to Rust Ave intersection.

Period of Closure: 7:30am to 12 noon.

Rust Avenue, from Whangarei Intermediate Pedestrian Crossing to Bank Street Intersection

Bank Street, from Dent St roundabout down to Water St/Vine St intersection (including Hunt Street and Bank Street intersections)

Cameron Street West, from Bank Street intersection to Cameron Street Mall

Period of Closure: 10am to 12 noon

Rathbone Street, from Cameron Street West to Laurie Hall Lane (including Butter Factory Lane intersection)

Robert Street, from Rathbone/Robert Street intersection to Walton Street (includes Rathbone/Robert Street intersection, James/Robert Street roundabout and John/Robert Street roundabout)

Period of Closure: 10am to 1pm

John Street, from John Street Service Lane to Cameron Street East (includes John Street Service Lane)

Period of Closure: 10am to 2pm

Cameron Street East, from Walton Street to Cameron Street Mall

James Street, from Cameron Street Mall to Dent Street.

Period of Closure: 7:30am to 2pm.

2. Approves the proposal to temporarily close the side roads off the roads to be closed for up to 100 metres from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notice of these proposed temporary closures, to consider any objections and to either approve, cancel or amend any or all the temporary road closures if applicable.

Carried

Cr Halse requested his vote against be recorded.

Cr Reid requested his abstention from voting be recorded.

7.3 Dog Management Policy and Dog Control Bylaw - Adoption

Moved By Cr Carol Peters

Seconded By Cr Scott McKenzie

That Council:

1. Amends the Dog Management Policy, as provided in Attachment 1, with effect from 28 October 2024;
2. Determines that the proposed Dog Control Bylaw 2024 (Attachment 2)—
 - a. is the most appropriate form of bylaw; and
 - b. does not give rise to any implications under, and is not inconsistent with, the New Zealand Bill of Rights Act 1990.
3. Revokes the Dog Management Bylaw 2013 and makes the Dog Control Bylaw 2024 with effect from 28 October 2024;

4. Delegates to the Chief Executive all its responsibilities, duties and powers under the Dog Control Bylaw 2024, except—
 - a. the power to set fees;
 - b. the power to make a decision for which a Council resolution is required;
 - c. the power to hear and decide on any appeal process.
5. Authorises the Chief Executive to make any minor edits or amendments to the Dog Management Policy and the Dog Control Bylaw 2024 to correct any spelling or typographical errors and/or to reflect decisions made by Council at this meeting.

Carried

Crs Halse, Reid and Yovich requested their votes against be recorded.

7.4 Te Rerenga - Taitokerau Northland Economic Wellbeing Pathway

Moved By Cr Deborah Harding

Seconded By Cr Carol Peters

That Council:

1. Receives Te Rerenga: Taitokerau Northland Economic Wellbeing Pathway.
2. Endorses Te Rerenga: Taitokerau Economic Wellbeing Pathway as an important vision document for Northland.

Carried

Cr Couper re-joined the meeting at 9.45am during discussion on Item 7.4.

7.5 Amendments to Council's Standing Orders

Amendments to Standing Orders require 75% of members to vote in favour.

The motion as taken in parts.

Moved By His Worship the Mayor

Seconded By Cr Phil Halse

That the Council;

1. Note the report and approve the following legislative amendments to its Standing Orders that were adopted by Council on 15 December 2022:
 - i **13.8 Member's status: quorum** (*page 35*)
Members who attend meetings by electronic link will be counted as present for the purposes of a quorum. *cl.25A(4) Schedule 7, LGA 2002.*

ii **Definition - delete** the definition '*Present at the meeting to constitute a quorum*'. (page 14)

iii. **11.1 Council meetings** (page 32)

The quorum for a meeting of the council is:

- a. Half of the members ~~physically~~ present, where the number of members (including vacancies) is even;
- b. A majority of the members ~~physically~~ present where the number of members (including vacancies) is odd.

iv. **13.9: Member's status: voting** (page 36)

13.9 Where a meeting has a quorum, determined by the number ~~physically~~ present, the members attending by electronic link can vote on any matters raised at the meeting.

On the motion being put His Worship called for a division:

	For	Against	Abstain
His Worship the Mayor	X		
Cr Gavin Benney	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly	X		
Cr Phil Halse	X		
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Carol Peters	X		
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich	X		
Results	13	0	0
Carried (13 to 0)			
75% threshold reached			

2. Approve the following discretionary amendments to its Standing orders:

v. **13.1 Members right to attend meetings** (page 34)

Public excluded: Members physically present at the meeting, should remain in the room during public excluded business, unless granted leave from the Chair, or are leaving the room having declared a conflict of interest.

vi. **13.7 Right to attend via audio visual link** (page 35)

Members attending via audio visual link must display on screen.

vii. **13.13 Chairperson may terminate link** (page 37)

(e) Information is classified as confidential may be compromised.

(f)[Where] The Member is not displaying visually on screen.

viii **14.2 Chairperson's role in meetings (Other meetings)** (page 38)

The Chairperson may agree to vacate the Chair to enable the Deputy Chairperson to chair the meeting at pre-agreed times.

Where this occurs, the Chairperson will need to formally vacate the Chair at the start of each meeting that it is pre-agreed the Deputy Chair will chair, and this must be recorded in the minutes of that meeting. The Chairperson is then able to be present, and participate in the meeting, including voting, while not chairing the meeting.

Amendment

Moved By Cr Paul Yovich

Seconded By Cr Phoenix Ruka

Amend recommendation vi. - 13.7 Right to attend via audio or audio visual link as follows:

vi. **13.7 Right to attend via audio visual link** (page 35)

Members attending via audio visual link must display on screen, *unless technical difficulties occur.*

The amendment was Carried

On the motion being put His Worship called for a division:

	For	Against	Abstain
His Worship the Mayor	X		
Cr Gavin Benney	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly	X		
Cr Phil Halse	X		
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Carol Peters	X		

Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich	X		
Results	13	0	0

**The Motion was Carried (13 to 0)
and subsequently Carried
as the substantive Motion
75% threshold reached**

3. Note Standing Order 20.11, use of digital devices at meetings:

20.11 Electronic devices at meetings (page 47)

Members use of digital devices is limited to the sole purpose of accessing notes and agendas.

On the motion being put His Worship called for a division:

	For	Against	Abstain
His Worship the Mayor	X		
Cr Gavin Benney	X		
Cr Nicholas Connop	X		
Cr Ken Couper		X	
Cr Jayne Golightly	X		
Cr Phil Halse	X		
Cr Deborah Harding		X	
Cr Patrick Holmes		X	
Cr Scott McKenzie		X	
Cr Carol Peters		X	
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich	X		
Results	8	5	0

**The motion was Lost
75% threshold not achieved**

8. Information Reports / Ngā Pūrongo Kōrero

8.1 2024-34 Long Term Plan - Deloitte Report to Council

Moved By His Worship the Mayor

Seconded By Cr Simon Reid

That Council note the Deloitte Report to Council for the 2024-34 Long Term Plan.

Carried

8.2 Better Off Funding Portfolio Progress Report - September 2024

Moved By Cr Simon Reid

Seconded By Cr Patrick Holmes

That the Council notes the September 2024 Progress Report on delivery of the Better Off Funding Portfolio.

Carried

8.3 Updated higher Government Parking and Towing Penalties

Moved By Cr Simon Reid

Seconded By His Worship the Mayor

That the Council receives and notes this report.

Carried

9. Public Excluded Business / Rāhui Tangata

Moved By His Worship the Mayor

Seconded By Cr Simon Reid

That the public be excluded from the following parts of proceedings of this meeting. The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

General subject of each matter to be considered		Reason for passing this resolution in relation to each matter	Ground(s) under Section 48(1) for passing this resolution
1.1	Confidential Minutes Emergency Whangarei District Council 4 September 2024		
1.2	Property Matter – Rent Concession		
1.3	Contract Negotiations – Animal Shelter Operations		
1.4	Transition Advisory Board Appointments		
1.5	Confidential Whangarei District Council Minutes 29 August 2024		

This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests

protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the proceedings of the meeting in public, are as follows:		
Item	Grounds	Section
1.1	For the reasons as stated in the open minutes	
1.2	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
1.3	To enable Council to carry on without prejudice or disadvantage commercial activities	Section 7(2)(h)
1.4	To protect the privacy of natural persons including that of a deceased person	Section 7(2)(a)
1.5	For the reasons as stated in the open minutes	

Carried

A break was taken from 10.49am to 11.04am.

10. Closure of Meeting / Te katinga o te Hui

His Worship the Mayor closed the meeting with a karakia/prayer at 12.04pm.

Confirmed this 24th day of October 2024

His Worship the Mayor Vince Cocurullo (Chairperson)